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JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.230885 of 2018

Shahid Mehmood Vs. Additional District Judge,
Sialkot and others.

J U D G M E N T

Date of Hearing	07.04.2026
For petitioner:	Raja Muhammad Riaz Satti, Advocate
For Respondents:	Ch. Muhammad Jawad Yaqoob, Addl. A.G. Sheikh Nasir Rafique, M. Bilal Mehmood Khokhar and Rana Javed Iqbal, Advocates for respondents No.6 & 7.

Hassan Nawaz Makhdoom, J.- Through this petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, the petitioner/plaintiff has assailed the orders dated 08.12.2017 passed by respondent No.2 (trial Court) and dated 10.05.2018 passed by respondent No.1 (revisional Court), whereby the petitioner's application under Order VI Rule 17, C.P.C. for amendment of plaint was concurrently dismissed.

2. Briefly the facts are that the petitioner instituted a suit for declaration along with permanent and mandatory injunction, asserting ownership and possession over the suit land and challenging the alleged illegal incorporation of a passage in the revenue record. The contesting respondents No. 6 & 7/defendants No. 4 & 5 filed their written statement on 02.02.2008 in which they specifically referred to an order of the Collector dated 18.01.1982 and consequent registration of mutation No.1070 dated 18.12.1982. The suit thereafter proceeded in accordance with law; issues were framed, evidence of the parties was recorded and the matter reached the stage of final arguments. At that advanced stage, the petitioner/plaintiff moved an application under Order VI Rule 17, C.P.C. seeking amendment of the plaint to incorporate a challenge to the aforesaid order and mutation. The said application was concurrently dismissed by the learned trial Court and the learned revisional Court through the orders impugned herein.

3. Learned counsel for the petitioner has argued that the proposed amendment was necessary for just and effective adjudication of the real

controversy between the parties; that the same did not change the nature of the suit; and that the Courts below adopted a hyper-technical approach in declining the amendment. It is further contended that delay alone is not a ground to refuse amendment and the discretion vested in the Court under Order VI Rule 17, C.P.C. is to be exercised liberally. In support of his arguments, learned counsel for the petitioner has placed reliance on the cases reported as Mst. GHULAM BIBI and others Vs. SARSA KHAN and others (PLD 1985 SC 345), MUHAMMAD ABDULLAH KHAN NIAZI Vs. Rais ABDUL GHAFUOR and others (PLD 2003 SC 379), Syed Nazir Hussain Rizvi Vs. Zahoor Ahmad and another (PLD 2005 SC 787) and Haji SULTAN ABDUL MAJEED (DECD) through Mehboob Sultan and Habib Sultan and others Vs. Mst. SHAMIM AKHTAR (DECD) through Mah Jabeen and others (2018 SCMR 82).

4. Conversely, learned counsel for the private respondents has supported the impugned orders and contended that the application was hopelessly belated, mala fide and aimed at filling lacunae in the petitioner's case after completion of trial. It is argued that the petitioner had full knowledge of the alleged order and mutation since the year 2008 but intentionally failed to challenge the same at appropriate stage. It is submitted that the petitioner had already amended the plaint twice and the instant application was the third attempt, filed only to prolong the proceedings and improve his case, thereby seriously prejudicing the rights accrued in favour of the respondents.

5. I have heard the learned counsel for the parties and perused the record with their able assistance.

6. The controversy pertains to the scope and exercise of discretion under Order VI Rule 17, C.P.C. It is by now well settled that although amendments of pleadings are to be allowed with a liberal approach to advance the cause of justice, such discretion is neither absolute nor unqualified. The Court must examine the conduct of the party seeking amendment, the stage at which such amendment is sought, its necessity for determining the real controversy, and the prejudice likely to be caused to the opposite side.

7. From the record, it is evident that the petitioner acquired knowledge of the alleged order of the Collector dated 18.01.1982 and mutation No.1070 dated 18.12.1982 at least on 02.02.2008, when the written statement was filed by the contesting respondents. Despite such knowledge, the petitioner chose not to challenge the same for a considerable period and allowed the proceedings to progress through framing of issues, recording of evidence and hearing of final arguments. The instant application was filed after a lapse of almost nine years from the date of knowledge and at a stage when the trial had substantially concluded.

8. The conduct of the petitioner, in the circumstances, cannot be construed as *bona fide*. The delay is not merely procedural or inadvertent; rather, it signifies a conscious and deliberate omission, followed by a belated attempt to cure inherent deficiencies in the case after the conclusion of evidence. Learned counsel for the private respondents rightly pointed out that the petitioner had already availed opportunities for amendment on earlier occasions, yet failed to incorporate the plea now sought to be introduced. This omission, when viewed in the overall context of the proceedings, reinforces the inference that the present amendment is not intended to facilitate adjudication of the real controversy, but is instead aimed at improving and strengthening the case at an advanced stage of the trial, which is not permissible under the settled principles of law.

9 It is pertinent to observe that the amendment sought is not of routine or of an insignificant character. In substance, the petitioner seeks to lay a direct challenge to the order of the Collector and the consequential mutation entries, which form the cornerstone of the respondents' case. At the stage of final arguments, introduction of such an amendment would inevitably enlarge the scope of the dispute and alter the very framework of the case, thereby disturbing matters that have already attained finality through settled pleadings and recorded evidence. Thus, such course would not only derail the procedural progression of the case, but would also operate to the detriment of the respondents, who have contested the matter on the basis of the original

pleadings and have, by the lapse of time, acquired certain valuable and accrued rights which cannot lightly be disturbed.¹. Reference in this regard may be placed on case titled “L.J. Leach and Co. Ltd. and another Vs. Messrs. Jardine Skinner and Co.” (S) A.I.R. 1957 S.C. 357, wherein the following has been observed:

“(16) It is no doubt true that Courts would, as a rule, decline to allow amendments, if a fresh suit on the amended claim would be barred by limitation on the date of the application. But that is a factor to be taken into account in exercise of the discretion as to whether amendment should be ordered, and does not affect the power of the Court to order it, if that is required in the interests of justice. In Charan Das v. Amir Khan, 47 Ind App 255 (AIR 1921 PC 50) (A) the Privy Council observed:

“That there was full power to make the amendment cannot be disputed, and though such a power should not as a rule be exercised where the effect is to take away from a defendant a legal right which has accrued to him by lapse of time, yet there are cases where such considerations are out-weighed by the special circumstances of the case...”

(Emphasis supplied)

10. The above principle squarely applies to the facts of the present case. The petitioner, having remained silent for years despite knowledge of the impugned facts, cannot be permitted to reopen the entire controversy at the stage of final arguments. Further support is drawn from the dictum laid down in Mst. Imam Hussain Vs. Sher Ali Shah (1994 SCMR 2293). Relevant part of the same is as follows:-

“4. ... In our view, the petitioner was not entitled to seek the amendment of the plaint in the above civil revision after the expiry of nearly five years from the date of filing of the suit with the object to change the complexion of the suit. No doubt this Court has held in a number of cases that an application for amendment of the pleading can be entertained at any stage of the proceedings, but, at the same time, it has been consistently held that the amendment of the plaint cannot be allowed to change the complexion of the suit. In the present case, the above belated attempt of the petitioner to amend the plaint was not warranted by the facts and law. ...”

(Emphasis supplied)

¹ W.P. No.4183/2022 titled “Maqbool Ahmad v Addl. District Judge, etc.”

Similarly, in Abaid Ullah Malik Vs. Additional District Judge, Mianwali and others (PLD 2013 SC 239), the Hon'ble Supreme Court of Pakistan has emphasized that while amendment powers are wide, they must not be exercised where the amendment is tainted with lack of *bona fides*, causes prejudice to the opposite side, or is intended to improve the case after evidence. The relevant excerpt reads as under:-

“3. ... There can be no cavil that the court has ample authority and discretion to allow amendments of the pleadings in appropriate cases, which authority may be exercised at any stage of the proceedings in the trial, and in certain cases amendments can be permitted at the stage of appeal or even in the revisional jurisdiction. There also can be no disagreement that the power and authority in allowing the amendments shall be liberally exercised, however, keeping in view the salutary rule, that the proposed amendment(s) is/are expedient for the purposes of determining the real questions in controversy between the parties, it should not alter the nature of the suit or the defence. Similarly, at the same time some important fundamentals should also not be lost in sight and must be kept in mind by the courts while exercising such authority, in that, the amendment sought/proposed must not be tainted with dishonesty of purposes; it is not meant to withdraw and resile from the admission made in the pleadings of the parties; it should not cause prejudice to the opposite side, particularly to deprive such (opposite) side of a benefit attained by it from the evidence adduced on the record by the party asking for the amendment; the conduct and the motive of the party and the object/purpose behind the request for the amendment.”

(Emphasis supplied)

Reference may also be made to a judgment of the Supreme Court of India in North Eastern Railway Administration, Gorakhpur Vs. Bhagwan Das (D) by LRs (AIR 2008 SC 2139), wherein the governing principles relating to amendment of pleadings under Order VI Rule 17, C.P.C. were succinctly reiterated, relevant paragraph No.15 of which reads as under:

“15. Insofar as the principles which govern the question of granting or disallowing amendments under Order 6 Rule 17 C.P.C. (as it stood at the relevant time) are concerned, these are also well settled. Order 6 Rule 17 C.P.C. postulates amendment of pleadings at any stage of the proceedings. In Pirgonda Hongonda Patil v. Kalgonda Shidgonda Patil & Ors., AIR 1957 Supreme Court 363 which still holds the field, it was held that all amendments ought to be allowed which

satisfy the two conditions: (a) of not working injustice to the other side, and (b) of being necessary for the purpose of determining the real questions in controversy between the parties. Amendments should be refused only where the other party cannot be placed in the same position as if the pleading had been originally correct, but the amendment would cause him an injury which could not be compensated in costs. (Also see: Gajanan Jaikishan Joshi v. Prabhakar Mohanlal Kalwar, 1990(1) RCR (Rent) 229 : 1990(1) RRR 222 : 1990 Civ. C.C. 277 (SC))”

Reliance is also placed on the judgment reported as MUHAMMAD ARIF TARAR and another vs. MATLOOB AHMAD WARRAICH and others (PLD 2025 SC 691), wherein the Hon’ble Supreme Court of Pakistan has held that the timing of a request for amendment cannot be examined in isolation, but must be assessed in light of its potential impact upon procedural fairness and the accrued substantive rights of the opposing party. It was observed that where an amendment is sought after prolonged pendency of litigation, particularly where the party has failed to diligently prosecute its case or lead evidence despite repeated opportunities, such belated attempt cannot be treated as a mere clarification. Rather, insertion of a material factual element at such an advanced stage of the proceedings reflects an endeavour to reshape or recalibrate the factual foundation of the case in response to the trajectory of the trial. The Hon’ble Court further held that amendments of this nature, introduced after considerable delay, warrant strict judicial scrutiny and may justifiably be declined in order to preserve the sanctity, fairness, and integrity of the proceedings. For ready reference, the relevant portion of Muhammad Arif Tarar’s case (*supra*) reads as follows:-

*“8.The timing of the amendment request must, therefore, be viewed not in isolation, but in the context of its potential to disturb the procedural fairness and substantive rights of the opposing party. In the present case, the petitioner(s)’ amendment was sought after a decade of pendency, and multiple adjournments, all the while failing to lead evidence. The attempt to insert a significant factual detail relating to the alleged oral agreement-namely the location of its execution-after such an extended lapse of time cannot be viewed as a benign clarification. Instead, it appears to be an effort to recalibrate the factual matrix of the petitioner(s)’ case in light of the trial’s trajectory. As held in Mst. Ghulam Bibi *ibid*, this type of amendment, coming at a*

late stage justifies close judicial scrutiny and may rightly be refused to preserve the integrity of the proceedings.”

The above dictum reiterates the settled legal position that, although the power to allow amendment of pleadings is wide and enabling, it is circumscribed by the requirement that such discretion be exercised judiciously, so as to ensure fairness in the proceedings and to protect the rights that have accrued to the opposite party. In the case at hand, the amendment sought by the petitioner is not merely incidental, explanatory, or auxiliary in nature. On the contrary, it seeks to introduce a substantive and material factual assertion at a stage when the proceedings have substantially progressed, thereby disturbing the structure of the *lis* as originally framed. Such a course would unsettle issues already crystallized through pleadings and evidence, and would result in serious prejudice to the respondents, who have conducted their defence on the basis of the original pleadings.

11. The case law relied upon by the petitioner does not advance his case and is clearly distinguishable. In those precedents, the amendments were either confined to the nature of relief or were grounded in the same set of facts already on record, without altering the fundamental character of the case or prejudicing the opposite party. In contrast, the amendment sought herein seeks to introduce an entirely new factual foundation, which was never part of the original pleadings. It, therefore, cannot be regarded as a mere clarification or an alternative plea, but rather amounts to a substantive transformation of the case, which is not permissible at such a belated stage.

12. It is further pertinent to observe that the impugned judgment dated 10.05.2018 has been rendered by the learned Additional District Judge in exercise of revisional jurisdiction. It is a settled principle of law that this Court, while exercising constitutional jurisdiction under Article 199 of the Constitution, ordinarily exercises restraint in interfering with concurrent findings of fact recorded by the Courts below, particularly where such findings have already undergone scrutiny in revisional proceedings (whether under Section 115 C.P.C. or analogous provisions). Revision itself being a corrective remedy, the constitutional jurisdiction is not intended to operate as a further

appellate forum. Interference in such matters is, therefore, confined to exceptional circumstances, where it is demonstrated that the impugned findings suffer from patent illegality, jurisdictional defect, material irregularity, or have resulted in a manifest failure of justice. In the absence of such vitiating factors, the concurrent conclusions of the Courts below are not to be disturbed. In this context, reliance may be placed on Muhammad Khan and others Vs. Mst. Ghulam Fatima and others (1991 SCMR 970), wherein the Hon'ble Supreme Court succinctly delineated the legal position as follow:-

“2.... the learned High Court observed that a revisional order arising out of civil litigation could not be challenged in the Writ Petition and relied upon Ghulam Hussain v. Malik Shahbaz Khan 1985 SCMR 1925; Muhammad Bakhsh v. Ghulam Hussain 1989 SCMR 443 and Muhammad Zahoor v. Lal Muhammad 1988 SCMR 322.

3. The order of the High Court in the circumstances is not open to challenge on any legal ground. The order was legal and proper. No point of law is involved in this petition. The petition is dismissed and leave to appeal is refused.”

The above dictum reinforces the principle that constitutional jurisdiction is not to be invoked as a substitute for further appeal or revision, and that well-reasoned revisional orders are ordinarily immune from interference unless they are shown to be fundamentally flawed in law or jurisdiction.

13. In the present case, learned counsel for the petitioner has failed to point out any jurisdictional defect, illegality or material irregularity in the impugned orders. The findings recorded by the Courts below are based on proper appreciation of the record and settled principles of law governing amendment of pleadings. The plea that refusal of amendment would render the suit infructuous is equally devoid of force. A party cannot be permitted to take advantage of its own inaction or negligence. The procedural law is meant to facilitate justice, but it does not extend to permitting a litigant to reshape his case at the final stage to the detriment of the opposite party.

14. In view of the foregoing discussion, no ground warranting interference by this Court in exercise of its constitutional jurisdiction under Article 199 of the Constitution has been made out. The

concurrent findings recorded by the learned Courts below are well-reasoned, founded upon proper appraisal of the material available on record, and do not suffer from any illegality, jurisdictional defect, or perversity so as to justify interference. In this regard, reliance is placed on Zulfiqar Ali v. Judge, Family Court and others (2007 MLD 1710) and MUHAMMAD AYUB, Shop Manager Bata Pak. Ltd. and another v. MUHAMMAD RAHMAN and others (2026 SCMR 31), wherein the Hon'ble Supreme Court of Pakistan has reiterated the settled principle in the following terms-

“7. The learned High Court, in setting aside well-reasoned concurrent findings, failed to advert to these deficiencies. The rule is well settled, as reiterated in State Life Insurance v. Jaffar Hussain (2009 CLD 610) and Allies Book Corporation v. Sultan Ahmad (2006 SCMR 152), that interference in concurrent findings is permissible only when such findings are shown to be illegal, perverse, or based on extraneous considerations. None of these exceptions apply in the instant matter.”

The above-stated principle is fully attracted to the facts of the present case. No case of miscarriage of justice has been made out which may warrant intervention by this Court in exercise of its constitutional jurisdiction.

15. Consequently, this writ petition, being devoid of merit, is hereby **dismissed**.

(Hassan Nawaz Makhdoom)
Judge

Approved for reporting

Judge

Announced/dictated on 07.04.2026
and signed on 16.04.2026.

Tahir Noor